

does not negate the fact that notice was provided and that Defendants were afforded an opportunity to be heard. The statute allows for a flexible, “reasonable” procedures. (CCP § 1245.235(d).)

Affirmative defenses nos. 5 (impairment of access/severance damages), 6 (severance damages), and 7 (precondemnation damages/unreasonable delay) plead only conclusory allegations of damage. For example, no. 5 pleads that the scope and conditions of the easement are “excessive, unreasonable, and not necessary.” For no. 6, it pleads “diminution in value, loss of use, interference with tenant operations, and reduced income potential.” For no. 7, it pleads “unreasonable delay and/or precondemnation conduct” that “affects the value, use, and operation of Defendants’ property.” Here, they fail to plead the specific facts as required.

Affirmative defense no. 11 pleads inverse condemnation offset/credits. An inverse condemnation claim is a cause of action, not an affirmative defense, and is improper here. (*Red Mountain, LLC v. Fallbrook Public Utility Dist.* (2006) 143 Cal.App.4th 333, 356-357.) No. 12 (constitutional violations) again fails to plead any specific facts showing how the proposed taking violates constitutional principles beyond a claim for compensation. No. 13 (reservation of rights) is not an actual defense.

Plaintiff’s Request for Judicial Notice #s 1-6 GRANTED.

Plaintiff’s Demurrer to the Answer of Defendants Monroe Shops LLC; David A. Demers and Robert C. Tall as Trustees of Demers-Tall Trust SUSTAINED.

The 1st, 2nd, 3rd, 4th, 5th, 6th, 7th, 8th, 9th, 10th, 11th, 12th and 13th Affirmative Defenses are SUSTAINED with leave to amend.

Defendant shall file an amended answer within 20 days.

Case Management Conference is rescheduled from 7.20.26 to 8.31.26.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2509899	COUNTY OF RIVERSIDE VS MONROE SHOPS, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY	MOTION FOR PREJUDGMENT POSSESSION

Tentative Ruling: CCP §1255.410(a) provides that when filing a complaint, and prior to entry of judgment, a plaintiff may move for an order for possession upon demonstrating that the plaintiff is entitled to take the property by eminent domain and has made the requisite deposit. The motion is required to: 1) describe the property, 2) state the date that plaintiff is seeking possession, 3) inform defendant they have a right to oppose the motion, and, 4) if opposing on the ground of hardship, a declaration of facts as to the hardship.

CCP §1255.410(c) states that a defendant or occupant must oppose the motion no later than 30 days after service of the motion. If the defendant asserts a hardship, it must be supported by a declaration under penalty of perjury. (*Id.*)

The court may make an order for possession if it finds the following: (1) the plaintiff is entitled to take the property by eminent domain; (2) the plaintiff has deposited the amount; (3) there is an overriding need for possession prior to the issuance of a final judgment and the plaintiff will suffer a hardship if the application is denied; and (4) the hardship plaintiff will suffer if the application is denied outweighs any hardship of the defendant. (CCP §1255.410.)

Here, there is no dispute that County is entitled to take the property via eminent domain. County has deposited the amount. County declares that it needs immediate possession because the failure to certify the right-of-way by 6/10/26 will result in the “guaranteed loss of \$1.5 million in federal funds and place an additional \$56 million in federal funding at severe risk.” (Junaid Supplemental Decl., ¶¶ 2-3.) Procedurally, the County argues that Defendants’ opposition is untimely as it was filed on 4/24/26, about one month after the statutory 30-day deadline expired on 3/25/26. (See McClure Supplemental Decl., ¶¶ 6, 8.) While the opposition is untimely, the court has discretion to consider an untimely-served opposition. (See CRC 3.1300(d); *Slayton v. Superior Court* 146 Cal.App.4th 55, 58, n. 2; *Kapitanski v. Von’s Grocery Co.* (1983) 146 Cal.App.3d 29.) However, even if addressing the Defendants’ untimely opposition, the opposition is still defective as it lacks the mandatory declaration signed under penalty of perjury required to support a claim of hardship. (Code of Civ. Proc., § 1255.410(c).)

On the merits, Defendants’ identification of hardship such as “operational disruption” and “interference with parking access and circulation” are speculative and there is a lack of detail. Defendants’ other arguments, such as their challenges to the amount of the deposit or the “specific scope” of the easement, are not grounds to deny this motion.

The County has satisfied the statutory requirements, the resolution of necessity identifies the temporary construction easement as 60 months to have access to the properties (Resolution of Necessity, p. 2), and its substantial hardship outweighs Defendants’ unsubstantiated claims.

Motion for Order of Prejudgment Possession GRANTED.

The proposed Order of Prejudgment Possession submitted by Plaintiff is effective as of the date of this order.